Industrial Economics Paper

The relevance of regulation on the collaborative economy : The study of Airbnb and BlaBlaCar

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May 2024

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1 Introduction

The rise of the digitization of economic activity is at the heart of the 21st century, a true challenge for economic agents who must use it. In this context, we observe a strong development of the collaborative economy through digital platforms. This has led to the appearance of giants in the real estate field with Airbnb, which is established in more than 34,000 cities, or in the carpooling field (to cite only them) with BlaBlaCar, which represents 90% of the European carpooling market.

According to the 2017 Senate report, "the collaborative economy, or online platform economy, is not a simple fad, but a fundamental trend. In Europe, it represented 28 billion euros of transactions in 2016, an amount that doubled in one year. In 2025, it could reach 572 billion euros"[cite: 8]. It is therefore appropriate to consider the stakes of the appearance of these platforms in our modern economy.

The collaborative economy is a sharing economy that takes its source in the social and solidarity economy, which does not function according to the exclusive logic of profit, but also with ethical, ecological, and social innovations. Collaborative economy companies share a common point: their activity consists of connecting a large number of suppliers and demanders thanks to a digital platform in the majority of cases. They do not constitute a new sector of activity but introduce unprecedented modes of production and consumption into classic sectors of activity (catering, accommodation, transport, financing of the economy...).

We notice therefore that these companies have specific common characteristics. First of all, the company's activity consists of ensuring the centralization and transparency of information, guaranteeing the security of transactions without producing the exchanged goods and services. Furthermore, the producers are not only professionals; they can be individuals and occasionally become consumers themselves (accommodation for example). However, the main particularity of these companies is the consideration of a significant externality: each new consumer (respectively producer) on one side will be beneficial for the other side of the market. In other words, we are witnessing the birth of a network economy having the singularity of very significant increasing returns.

It then seems easy to see that the appearance of these companies will benefit consumers. Taking the example of Airbnb, this allows individuals to benefit from housing at reduced prices for tenants but also rental income from uninhabited goods for owners. However, the main stakes of these companies in the economy are not found there but on the contrary in the failures that arise from the eruption of this new form of consumption. Indeed, these companies are at the heart of numerous debates concerning their regulation in order to fill these failures. This is explained notably by the unfair competition that Airbnb carries out against the hotel sector or the emergence of monopolies coming from these companies due to the existence of network economies as well as aggressive buyout policies as BlaBlaCar was able to demonstrate by the purchase of Carpooling and AutoHop in Europe.

Thus we arrive at monopolistic situations unfavorable to the economy and allowing these companies to play on their position. This is what BlaBlaCar did by sharply increasing its commissions which went from 15% in 2015 to 25% today. This has notably incited governments to regulate these companies. This is notably the case in France with article L324-1-1 of the Tourism Code, in force since January 1, 2020, which limits the possibility of renting on the Airbnb platform to 120 days per year.

However, we notice that certain tourist cities suffer from rental housing shortages. This is for example the case for Barcelona or Paris which have been facing this problem for many years since owners withdraw their housing from the rental market in order to dedicate it to the Airbnb platform which offers them better remuneration and which in fact accentuates the housing shortage since the number of ads on the platform went from 30,000 in 2013 to about 750,000 in 2023.

As we pointed out in this introduction, the emergence of digital platforms has caused the introduction of several failures in sectors of activity. It will then be a question of questioning the relevance of a regulation and from this observation what forms could they take on collaborative economy platforms such as Airbnb or BlaBlaCar.

2 Numerous failures and externalities generated by collaborative economy platforms

The arrival of the collaborative economy in the economy was at first perceived as a vector of a significant surplus increase for economic agents. This translates into a decrease in transport costs for BlaBlaCar users or even reductions in greenhouse gas emissions. However, these positive externalities must be nuanced since it leads to anti-competitive situations where State intervention seems necessary.

2.1 Significant competitive effects generated by Airbnb and BlaBlaCar

One of the main characteristics of collaborative economy platforms having emerged during the last decade is the appearance of a quasi-monopolization of their markets because these platforms developed in innovative sectors and were able to very quickly capture and retain all the clientele. Moreover, we notice that this phenomenon is often accompanied by competition that can be judged unfair vis-à-vis traditional actors, due to numerous factors that we will seek to understand.

First of all, we will see that the case of Airbnb refers us to a problem of unfair competition. Indeed, the emergence of Airbnb in short-term rentals for a few years has pushed the hotel sector to rebel against the company by accusing it of unfair competition. The main professional union of the sector estimates that Airbnb illicitly appropriates the clientele of hoteliers by a non-respect of the regulation. Indeed, traditional hotels, because of their cost structure and their regulatory compliance, often find themselves disadvantaged in the

face of the flexibility and scalability offered by short-term rental platforms like Airbnb. This is explained by the fact that hotels face significant costs (in particular fixed costs) in terms of employees and maintenance while the Airbnb platform initiated significant fixed cost expenses in its beginnings but now has a marginal cost close to zero according to Rifkin.

Despite the fact that the expected services are not the same, the hotel sector estimates that Airbnb appropriates a part of the clientele by a price competitiveness strategy by proposing prices which hotels cannot face (similar to the Taxis versus Uber conflict) and also by a non-respect of the regulation which stipulates the withdrawal of rental offers beyond 120 nights per year. The platform is content to remove offers beyond the authorized limit in only four districts of Paris, demonstrating the inefficiency of this regulation which we will talk about later, in the second part of our subject.

Moreover, we notice that collaborative platforms and notably Airbnb are not subject to different taxes and this poses problems. Indeed, the prices practiced by rentals on Airbnb are comparatively cheaper than in the hotel sector but even assuming that the prices of hotels and the collaborative platforms market are identical, the Airbnb rental market keeps an advantage on the market. This situation was highlighted by Rachel Botsman in her work "What's Mine Is Yours: The Rise of Collaborative Consumption", where she highlights the financial advantages for Airbnb hosts, but also concerns regarding the impact on local communities and competition with established hotel companies.

Indeed, for most rentals, the tax on temporary occupation is not collected on Airbnb. In cities like San Francisco or New York, where taxes on temporary occupation (often up to 15%), associated with other local taxes (often up to 10%) are supported by hotel markets but not by private rentals offering them a certain advantage in terms of costs of 25%, simply because they do not collect the tax. Moreover, the profits withdrawn from these activities escape most taxes (taxes on profits or VAT).

Then we notice that the most recurrent problem with these platforms is their ease in establishing monopolies in their fields of competence as demonstrated by BlaBlaCar or Airbnb. The monopolies emerging from collaborative economy companies such as BlaBlaCar can be attributed to several factors. Firstly, the costs of these companies which are similar to increasing returns to scale therefore favor monopolization. Then these platforms were often the pioneers in their respective sectors, allowing them to establish a solid user base and early brand recognition. As Juliet Schor points out in her work "After the Gig: How the Sharing Economy Got Hijacked and How to Win It Back", this initial advance creates barriers to entry for new actors, thus consolidating the dominant position of established companies (principle of winner takes all on these platforms). Airbnb now has a valuation of 30 billion dollars.

For most collaborative economy companies, the growth in the number of users is the absolute priority, even if it means undergoing considerable losses during the first years before establishing a solid business model. This strategy is dictated by the necessity to

stimulate the network effect, where the size of the community prevails. Airbnb waited for the 2022 financial year and the end of the Covid period to realize a positive profit without scaring away investors convinced that Airbnb's market power will allow it to form a local monopoly, and therefore to ensure a larger share of the pie in the long term with a viable model.

These companies of the new era like BlaBlaCar also strive to eliminate future forms of competition by proceeding with mergers and acquisitions. We can note for BlaBlaCar the acquisition of Klaxit, the leader in short-distance carpooling in France in April 2023. With this integration of all Klaxit employees, BlaBlaCar marks a key step in the BlaBlaCar Daily strategy in order to ensure domination on the segment of recurrent work-home type carpooling. Airbnb has notably used its successive fundraisings to buy competing companies, like the German platform Accoleo in 2011, or the British platform CrashPadde in 2012. Since the interest of creating a company based on the collaborative economy rests largely on the number of people using the platform and user data, the latter do everything to capture the largest part of market shares quickly and derive the greatest benefit.

In addition, as Rachel Botsman points out in "Who Can You Trust?", collaborative economy companies often have high switching costs for users, which means that once they have invested time and effort in a particular platform, they are less inclined to switch to another platform, thus reinforcing the domination of the latter. This partly explains the increase in services of these companies since we notice a barely significant decrease in users of these platforms following these increases. This clearly demonstrates the fact that individuals prefer to face these increases rather than creating new files using another platform.

Indeed, by analyzing the distinctive traits of the collaborative economy, it is legitimate to ask if these markets do not favor the emergence of a unique winner, thus creating exceptionally strong monopolies. We notice that State aid can also favor the maintenance of a monopoly like this one. In January 2023, the government launched an unprecedented development plan for the practice with the implementation of the Carpooling Bonus of 100€ for drivers or the mobilization of 50 million euros from the State to support financial incentives proposed by communities which participated in reinforcing the privileged place in the carpooling landscape of BlaBlaCar. State support through mechanisms such as energy savings certificates can favor the growth of a specific platform to the detriment of its competitors, thus creating an environment where regulatory barriers reinforce the existing monopoly.

Recently during the month of April 2024, the discreet support of the State for BlaBlaCar via a partnership with TotalEnergies to generate energy savings certificates (CEE) was unveiled, thus offering a significant financial windfall to the platform since 2012. This system was extended for a decade, raising questions about the transparency and environmental efficiency of the French firm. Thus despite a measure aiming to support the ecological benefits of an action such as carpooling by inciting agents to use this mode of

transport, the backlash is felt by the indirect support to BlaBlaCar and its domination.

2.2 The collaborative economy tends to weaken markets and is a vector of diverse externalities

As we can understand, anti-competitive practices do not summarize the entirety of the collaborative economy since their stakes are much more ambiguous than they appear. Indeed, we understand that these collaborative economies are also at the origin of positive externalities that we must strive to take into account but that they can also aggravate already worrying situations notably in terms of housing.

From a conceptual point of view, these platforms are considered as two-sided markets. According to the definition of Rochet and Tirole (2003), where each of the actors benefits from the presence of users on the other side and without resorting to transaction costs. These positive effects are crossed network externalities. The success of a platform depends on its capacity to gather a critical mass of users on both sides and to stimulate crossed network effects (Evans, 2009). This favors dazzling development and the appearance of monopolies as we have seen and this type of platform tends to generate numerous fragilities by their disruptive side and generate externalities to be taken into consideration for the question of their regulation.

For many years already, metropolises such as Paris or Barcelona have been facing unprecedented housing shortages. For cause: a demand that never ceases to increase with a limited offer in terms of housing provoking a strong rise in prices. However, the emergence of Airbnb is not harmless in this aggravation of the crisis. Indeed, more and more individuals turn to this mode of rental which is more profitable per year than a long-term rental.

The tension around the real estate market and the strengthening of the housing shortage is particularly notable and current as the Paris Olympic Games approach. They will see the emergence of extremely expensive short-term rentals saturating the market ever more, ideally illustrating our point. Indeed, we observe in the Paris region an increase in the number of short-term accommodations put up for rent for the 2024 Olympics with prices for a night multiplied by 3.5 compared to a classic period. Obviously, this leads to significant mobility and accessibility problems for residents of the Paris region.

However, the emergence of Airbnb is not harmless in this aggravation of the crisis. Indeed, more and more individuals turn to this mode of rental with a potentially higher profitability on the short-term rental market compared to that of traditional long-term rental thus reducing the supply of long-term housing. This reduction can lead to a rise in rents, because demand remains strong or even increases, creating inflationary pressures. Moreover, real estate speculation, fueled by investors who buy properties to rent them on platforms like Airbnb, creates an artificial demand on the real estate market, driving up housing prices and making accession to property more difficult for locals. Finally, the

constant rotation of visitors in residential neighborhoods due to short-term rental can reduce the number of permanent residents, impacting the social fabric and community cohesion, with consequences on the inhabitants' quality of life.

We then note that from Saint-Malo to Nice passing through Bordeaux and Biarritz, numerous cities have started their fight against Airbnb, and these initiatives are starting to show results. Established in March 2023 in the Basque Country, the compensation system obliges owners of short-term tourist rentals to propose on the market another housing unit, rented by the year, to counter the impact of Airbnb. It can globally be legitimate to attribute to Airbnb a reinforcement of patrimonial inequalities and a degradation of the employment situation, since people buy apartments with the sole aim of renting them on the platform, which provokes a rise in rents.

Then we will see that these platforms can have ambivalent effects in terms of externality. Indeed at first Airbnb and BlaBlaCar seem to be at the origin of positive externalities notably in terms of price decrease for consumers (transport or housing) as well as ancillary income for tenants or drivers. Also in 2018, BlaBlaCar contributed to saving a total of 1.6 million tons of CO_2 thanks to the relative efficiency of filled vehicles compared to other modes of transport justifying thereby the intervention of the State and its implication in the long term since by 2027 the French State wishes that 4.5 million tons of $CO_2/year$ be saved, that is the equivalent of 1% of annual greenhouse gas emissions of France if the objective of 3 million daily trips is reached. We also count an average occupancy rate of 3.9 people per vehicle against 1.9 people per vehicle without BlaBlaCar.

However, it is appropriate to note that externalities are not solely negative but the positive ones can however be nuanced. As mentioned previously, BlaBlaCar's lobbying would have influenced the calculation rules of CEE (energy savings certificates), highlighting the risks of manipulation of the system to the detriment of the environment. It is also important to be interested in the rating system on collaborative economy platforms, as a crucial tool to establish confidence between users in these two-sided markets, can also lead to externalities and challenges. As highlighted by Michael Fertik and David C. Thompson in "The Reputation Economy", the rating system which aims to favor trust and reduce information asymmetries can create pressure to obtain positive evaluations, inciting certain users to adopt opportunistic behaviors to avoid negative criticisms. Platforms can privilege the best-rated users, thus creating inequalities of access to opportunities and reinforcing power imbalances between stakeholders.

Finally, we notice that these companies are also at the origin of significant negative externalities due to their dominant position. Indeed, as we were able to point out in the previous part, these companies benefit from high switching costs which limits the attraction of agents to change platforms. We thus notice upward trends on most collaborative platforms. For example, according to a 2019 study, since 2011, BlaBlaCar has progressively increased its commission taken on each seat. In 2015, this commission amounted to 15% and in 2020, it reached 25%, which leads to an increase in prices. In parallel, the

company launched "Smart Stops" a year ago to broaden its offer, notably on poorly served medium-distance journeys. This function allows drivers to take passengers between two points of their itinerary, for a 20% surcharge on the price of the seat, with the aim of encouraging drivers to make detours.

The company Airbnb has increased its service fees which approach 20% while competitors like Booking have service fees of only 15%. We easily understand that these fee increases will be done to the detriment of consumer surplus and therefore lead to a suboptimal situation. Collaborative economy platforms are originally judged beneficial by the proximity link they create between suppliers and demanders as a two-sided market and respond to varied issues: Böcker and Meelen (2017) show that there exists a strong heterogeneity in practices relevant to the collaborative economy. Housing between individuals has a mainly economic motivation, while carpooling is also motivated by environmental considerations. They nevertheless take on numerous side effects which must give pause for thought on pertinent regulations in order to frame these giants of the collaborative economy industry. The utility of a regulation also depends on the degree of evolution of the network, if it evolves sufficiently in terms of technology and if it is sufficiently in competition, new monopolies seem little harmful because probably temporary but other parameters come into play here (housing shortage, fiscal stakes...). The effective tools to deploy are then not obvious, which we will see subsequently.

3 Diverse tools to regulate and frame the effects of the collaborative economy

Two main reasons generally justify regulation measures: natural monopolies and externalities. One might think at first glance that this type of platform brings a succession of temporary monopolies without danger nor need for great regulation but the evils that the collaborative economy can pose seem very wide, the intervention and study of a regulation appears necessary. Its action can mainly be centered at first around taxation in different forms then under the angle of regulation with a framing by norms.

3.1 Taxation as a remedy to the harmful stakes of the collaborative economy

We have been able to understand that the situations of monopolies or unfair competition in which these companies end up are the subject of State intervention. Because of this, a regulation on quantities has already been put in place in France by limiting to 120 days the number of rental nights possible on the Airbnb platform. However, the obvious inefficiency of this type of measure (notably in terms of housing shortage) is highlighted since during a third of the year these accommodations will not be available for medium or long-term rentals leads us to suppose new forms of measures to take in order to fill the failures highlighted. Thus the application of more targeted taxes or a price floor is quite

pertinent for collaborative platforms.

First of all, it appeared obvious to us of a possible implementation of a price floor for Airbnb rentals according to the number of places available in the property. Despite a significant drop in surplus for the consumer who will have to undergo the cost increase, we also consider a substitution effect in favor of hotel demand which stems from a certain harmonization of prices between short-term rentals and Airbnbs. However, the income effect linked to this measure could push households to go on vacation less and therefore reduce revenues linked to tourist activities. Moreover, we could observe a reduction in demand pressure on housing and the artificial rise in associated prices due to this displacement of demand towards the hotel sector. This effect will moreover be assumed quite important because of a market which is characterized by a strong price elasticity of demand. This remains in practice difficult to implement notably to know the number of places available in an Airbnb rental and causes as we were saying the appearance of a deadweight loss (Harberger triangle) which notably strongly harms consumers.

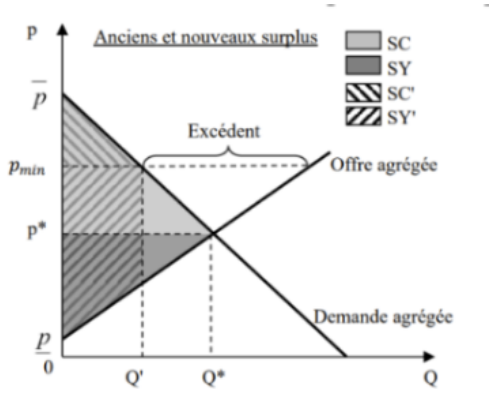


Figure 1: Deadweight Loss represented by the Harberger Triangle

Taxes thus seem more pertinent to fight against phenomena of unfair competition, tax avoidance, and monopolization. The application of a specific tax seems quite pertinent for collaborative platforms. On the one hand to reduce the price competitiveness of these platforms compared to traditional markets and structures by limiting unfair competition towards the hotel market, but also in order to avoid significant fiscal distortion by levying directly on the market and increasing at the same time state revenues. Thus it seems pertinent to us to discuss the possibility for a State to establish specific taxes (even if this does not rely on any theoretical foundation coming from any work) for these companies in order to diminish their power.

We notice that it is not only a question of limiting unfair competition supported by the mastodons of the collaborative economy but indeed to palliate all the failures. Concerning Airbnb and the Airbnb housing shortage, it is therefore necessary to incite tenants to put their housing for rent directly on the real estate market so that they benefit long-term rentals. Thus the idea would be the implementation of a tax for tenants at each rental on the Airbnb platform in a progressive manner. More concretely this would amount to

making owners pay a tax each time their housing is made available on Airbnb. To improve the efficiency of this tax, we could put in place a degressive tax system according to the number of rental days desired. And therefore the lower the number of days for the rental, the more significant the tax would be, which would tend to decrease all the more very short-term rentals and therefore to partially palliate problems of access to medium-long term housing.

Such a tax could echo the principle of the Tobin tax. Indeed these taxes rely on the significant number of rentals (respectively transactions) in the very short term. In this way, this would disincentivize to a certain extent tenants to put housing for rent on the very short term because that would amount to multiplying in the same way these taxes. Indeed, this tax supported by tenants would allow limiting the housing shortage since short-term rentals would lose their advantages by representing too large charges for owners. In this context, the idea would no longer be to impose a tax on Airbnb so that it aligns with the taxes of its sector competitors, but to impose a tax on tenants.

Moreover, this tax could also fill the problems of "fiscal niche", a major subject around Airbnb that we will see subsequently. Thus we understand that the implementation of a progressive tax on placing housing for rentals on Airbnb would allow on one hand to reduce problems linked to housing shortages by disincentivizing owners to place their housing on the platform but also to attenuate the problem of fiscal advantage from which platform tenants benefit to the detriment of public revenues.

Taxation can be particularly useful to curb information asymmetries or even reduce a form of excessive competition and notably tax avoidance being able to be exercised easily by avoidance. We will evoke the different solutions that can be thought of. In order to limit the dominant position and the monopoly profiting Airbnb, the idea of a tax on profits turns out to be advantageous. Indeed, while increasing government tax revenues, this could contribute to destabilizing Airbnb since their profit decrease cannot be filled by continually increasing service fees failing to see their monopoly erode.

We understand that this single tax could not suffice to dislodge Airbnb from its position since it benefits moreover from too important a resource, user data. Indeed, for virtual monopolies, these data represent a true gold mine. Given that Airbnb captures the majority of demand for short-term housing rentals, a tax on profits will surely not have a real effect on Airbnb's dominant position since this does not risk affecting the cost of delivery fees since this does not affect the firm's production costs and therefore individuals already present on the platform will not truly be incited to change company.

As we saw in the introduction, Airbnbs do not pay the same taxes as hotels which can be at the origin of fiscal distortion and price competitiveness favorable to Airbnbs. Thus, the application of a specific tax seems quite pertinent for collaborative platforms. On one hand to reduce the price competitiveness of these platforms compared to traditional markets and structures by limiting unfair competition towards the hotel market, but also in order to avoid significant fiscal distortion by levying directly on the market. This tax

would therefore aim to replace these costs supported by the hotel sector by installing a certain fiscal harmonization while generating revenues for the State.

However, it is appropriate to note that Airbnb paid back nearly 188 million euros of tourist tax in 2023, in France, an increase of nearly 27% compared to 2022. This already existing tax can then greatly help to bring Airbnb back to a situation of honest competition vis-à-vis the hotel market. The tourist tax is a levy collected by certain territorial entities such as municipalities, metropolises, departments, and regions from visitors who stay for a fee in accommodation on their territory. The tourist tax aims to finance local tourist services and equipment by levying an amount from visitors staying in the region.

By applying a higher collected flat-rate tax for Airbnb, customers of this platform are then more impacted than customers of the traditional hotel sector. This tax is all the stronger as the hotel is luxurious (up to 4 euros per night for a 5-star hotel for example). On Airbnb hosts indicate the type of housing in order to determine the amount to collect (the initial finance law (LFI) of 2015 authorized digital platforms to collect this tax), we can then imagine that an Airbnb accommodation equivalent to a two-star hotel must collect a tourist tax similar to a five-star balancing thus the power ratio. Thus the increase of these taxes for Airbnb housing can also be a solution to resolve housing shortages as well as fiscal distortions between Airbnb and the hotel sector.

3.2 Regulation: a powerful tool to frame the collaborative economy

However, we notice that these companies notably Airbnb and BlaBlaCar demonstrate quite substantial tax optimization or tax exemption. We then understand that taxation cannot be sufficient to resolve certain failures linked to these collaborative economies and that new measures must be put in place.

First of all, we notice that the first type of regulation does not come from the State but from the platforms themselves. Indeed, while they strive to negotiate more flexible regulations with authorities, to avoid litigation and to protect themselves against competition from traditional companies, most platforms prefer a form of self-regulation. This approach is motivated by several factors, notably user protection, prevention of legal risks, preservation of their reputation and, consequently, of their financial value, as well as maintaining a responsible image vis-à-vis regulators.

Information asymmetries pose a major challenge. As demonstrated by Akerlof (1970), uncertainty concerning the quality of goods offered for sale can hinder the conclusion of exchanges. To palliate this problem, platforms can put in place rating and reputation mechanisms, as Tadelis (2016) points out. However, it is essential that individuals give credit to these systems and, more generally, that they trust the users of these platforms so self-regulation is often a solution. They easily apply self-regulation solutions because these platforms dispose of what has the most value on the market: user data.

Self-regulation with the rating system, background checks for carpooling for example, most collaborative platforms also use an identification system for their users (that is to say consumers and prosumers). For example, Airbnb offers hosts the option to rent their property only to "verified" users, who have previously registered on the platform by means of a photo and identity documents. The insurance coverage offered by the platform to users minimizes uncertainties and increases digital trust. After a few negative incidents, Airbnb announced the launch of the "Host Guarantee" program which protects owners from damages caused to their property. This program is completed by the "Host Insurance" program whose goal is to protect hosts from claims made by third parties for bodily injuries and material damages.

However, self-regulation is not the miracle solution and a certain government regulation seems also necessary, this self-regulation seems to need to be completed by regulation measures by law. Thus, the role of norms is primordial, the law thus forbids renting one's main residence for more than 120 days in the year which limits the abuse of the Airbnb system, even if we saw that this measure was very little respected.

Then, as we have been able to see during the entirety of this project, the companies Airbnb and BlaBlaCar benefit from significant tax optimization. For example, France is the second country after the United States where the online commercial company Airbnb realizes its best turnover around 35 million euros but with only 366,000€ of corporate tax (IS) in 2021]. Which represented barely 0.7% of the total amount of tax paid by the company. One of the main reasons is that Airbnb's headquarters is located in Ireland, where the corporate tax rate is among the lowest on the continent, at 12.5%. In Paris, the platform only carries out marketing activities: all transactions linked to reservations in France are treated by the British and Irish subsidiaries of the group in return for which the French subsidiary invoices the services increased by a margin. Thus all profits linked to service provisions are centralized in Ireland.

This structure allows it to maximize its profits by minimizing its tax obligations in countries where its services are used, which raises concerns as to tax equity and the circumvention of international tax regulations. As has been thought for years around the situation of GAFAM, it seems necessary that European countries agree on this subject to unify rules in order to limit this optimization.

Finally, we notice that beyond the implementation of tax optimization within their group, the company Airbnb is also very criticized by numerous politicians who see in Airbnb a "fiscal niche". This term designates a derogatory tax regime compared to a "tax norm" in force, which is granted to an economic agent, allowing them not to pay a tax or duty which they should normally pay. If the official term is that of tax expenditure, it is because it corresponds to a cost for the State budget which must be compensated. A definition which applies well to rentals via platforms. Currently, revenues received for Airbnb rentals benefit from an advantageous taxation system with an abatement of 71% against 50% for classic furnished rentals and 30% for unfurnished housing. Concretely,

this means that more than two-thirds of income from Airbnb rentals can be exempted from tax.

It is in this optic that deputies wish to go towards a fiscal harmonization of this system, with an abatement of 40%. It is also with this objective that senators want to be stricter by imposing an abatement of only 30% to Airbnb housing (excluding sparse rural zones). These new measures proposed by politicians can redistribute the cards not only in terms of fiscal harmonization and reduction of unfair competition with the hotel sector but also to play in favor of unlocking the real estate market by inciting owners to propose their housing in long-term rentals.

4 Conclusion

This project highlights the challenges and opportunities associated with the collaborative economy, represented by platforms such as Airbnb and BlaBlaCar. While these companies have revolutionized the way we travel, house ourselves and consume, they have also aroused concerns concerning fair competition, regulation, and trust between users. The regulation of these platforms is a domain in constant evolution, seeking to find a balance between innovation and the protection of public interests.

Ultimately, the future of the collaborative economy will depend on the capacity of concerned actors to respond to these challenges in an efficient and fair manner, while taking advantage of the benefits it offers in terms of convenience, accessibility and sustainability. Although these platforms increase the surplus of economic agents, the border between support and regulation of these economies seems very fine in certain cases. Thus the implementation of different taxes can turn out to be effective in order to respond to housing problems or unfair competition between certain sectors.

However, overtaxation of costs supported by users or a specific tax could have an opposite effect to the envisaged situation by delocalizing a large part of agents towards competing platforms like Booking on the rental market and thus create new monopolies. So we notice that other measures must apply, which notably passes by norms. The transition towards the collaborative economy is inevitable, bringing with it enormous challenges and a radical transformation not only in our consumption habits but also in our relationship to work. Ignoring these opportunities would be a mistake; it is time to consider right now the best way to approach them.

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